



CHAPTER 10.

An Act to amend section twenty-eight, and subsection (3) of section nineteen, of the Bacon Industry Act, 1938. [27th March 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The amendments set out in the following provisions of this section shall be made in section twenty-eight of the Bacon Industry Act, 1938, and accordingly the said section twenty-eight shall have effect as set out in the Schedule to this Act.

Amend-
ments of
s. 28.
1 & 2 Geo. 6.
c. 71.

(2) In paragraph (b) of subsection (1) and paragraph (b) of subsection (2) of section twenty-eight of the Bacon Industry Act, 1938 (which provide for payments to curers by the Minister and to the Minister by curers calculated by reference to the amount by which the ascertained price for bacon falls below or rises above the prices there mentioned) for the words “ in the case “ of the first contract period ninety-four shillings and “ ninepence per hundredweight, in the case of the second “ contract period ninety-three shillings and ninepence “ per hundredweight and in the case of the third “ contract period ninety-one shillings and ninepence

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“ per hundredweight ” there shall be substituted the words “ the standard bacon price.”

(3) At the end of subsection (3) (which contains provisions for securing that payments under the section in respect of any pig are related to the quantity of bacon produced therefrom) there shall be added the following proviso—

“ Provided that, except in such cases or classes of cases as may be specified by or under regulations made under this section, if, in accordance with regulations so made, a curer proves to the Minister, in relation to specified premises and specified pigs (being pigs from which bacon could lawfully be produced on those premises) that a specified total weight of bacon was produced on those premises from all or some of those pigs, there shall be deemed for the purposes of this section to have been produced on those premises from each of those pigs a weight of bacon bearing to that total weight the same proportion as the dead weight of that pig bears to the total dead weight of all those pigs.”

(4) In subsection (4) (which relates to interpretation) the following paragraph shall be substituted for paragraph (a)—

“(a) the expression ‘ the ascertained bacon price ’ means, in relation to the bacon made from a pig, such sum as the Development Board may satisfy the Minister to be a sum which has in accordance with regulations under this section been determined by the Board (by reference to transactions carried out by such curers as may be specified from time to time by the Minister, after consultation with the Bacon Marketing Board, acting independently of the Development Board) to represent the average market value per hundredweight to curers, during the month beginning with the sixteenth day of the month during which, under the provisions of the contract, the pig is due to be delivered, of whole sides of green Wiltshire-style bacon of all selections produced by the tank-cure process from pigs produced in Great Britain; and ”

(5) At the end of subsection (4) there shall be inserted the following paragraphs—

“ and

(c) the expression ‘the standard bacon price’ means—

(i) in relation to the bacon made from a pig due to be delivered in a month comprised in the first contract period, ninety-four shillings and ninepence per hundredweight increased by one penny per hundredweight for each shilling by which the ascertained lard price for that month falls short of sixty-five shillings per hundredweight, or diminished by one penny per hundredweight for each shilling by which the said ascertained lard price exceeds sixty-five shillings per hundredweight;

(ii) in relation to the bacon made from a pig due to be delivered in a month comprised in the second contract period, ninety-three shillings and ninepence per hundredweight increased by one penny per hundredweight for each shilling by which the ascertained lard price for that month falls short of sixty-three shillings per hundredweight, or diminished by one penny per hundredweight for each shilling by which the said ascertained lard price exceeds sixty-three shillings per hundredweight;

(iii) in relation to the bacon made from a pig due to be delivered in a month comprised in the third contract period, ninety-one shillings and ninepence per hundredweight increased by one penny per hundredweight for every shilling by which the ascertained lard price for that month falls short of fifty-nine shillings per hundredweight, or diminished by one penny per hundredweight for each shilling by which the said ascertained lard price exceeds fifty-nine shillings per hundredweight; and

(d) the expression ‘the ascertained lard price’ means, in relation to any month, the price

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(calculated to the nearest shilling per hundred-weight, any odd sixpence per hundredweight being disregarded) which in the opinion of the Minister fairly represents the average of the prices at which during that month such descriptions of lard as are specified in regulations made under this section were sold by wholesale on such markets in Great Britain as are so specified."

Amendment
of s. 19 (3).
1 & 2 Geo. 6.
c. 71.

2. In subsection (3) of section nineteen of the Bacon Industry Act, 1938 (which specifies the circumstances in which bacon may be produced from imported pigs or carcasses) for the words "if it is shown in such manner" as may be specified by regulations made by the Minister that the pigs, carcasses or parts of carcasses were taken into account for the purposes of any such order or arrangements as may be so specified, being an order or arrangements regulating the importation from the country where the pigs in question were produced into the United Kingdom or into Great Britain of bacon or of pigs, and carcasses and parts of carcasses of pigs" there shall be substituted the words "if such conditions are fulfilled in relation to those pigs, carcasses or parts of carcasses, as may be specified by regulations made by the Minister"; and accordingly the said subsection (3) shall have effect as set out in the Schedule to this Act.

Short title,
citation and
commence-
ment.

3.—(1) This Act may be cited as the Bacon Industry (Amendment) Act, 1939, and this Act and the Bacon Industry Act, 1938, may be cited together as the Bacon Industry Acts, 1938 and 1939.

(2) The provisions of the Bacon Industry Act, 1938, amended by this Act shall be deemed always to have had effect as so amended.

SCHEDULE.

SECTIONS 19 (3) AND 28 OF THE BACON INDUSTRY ACT, 1938, AS AMENDED BY THIS ACT.

Section 19 (3).

(3) Nothing in the foregoing provisions of this Part of this Act shall prevent a registered curer from purchasing in any manner, and from producing and selling bacon produced from, any pigs, or carcasses or parts of carcasses of pigs, not produced in Great Britain if such conditions are fulfilled in relation to those pigs, carcasses or parts of carcasses, as may be specified by regulations made by the Minister.

Section 28.

28.—(1) Where pigs are delivered to and accepted by a curer under a long contract, there shall, subject to the provisions of this section, be paid by the Minister to the curer out of moneys provided by Parliament the sums following, that is to say,—

Payments
to and by
curers by
and to
Exchequer.

(a) an amount equal to any additions to the price of those pigs falling to be made under the provisions of the last preceding section;

(b) in respect of each hundredweight of the bacon produced from those pigs on premises in respect of which a producer's licence, other than a small curer's licence, is in force, a sum equal to the amount, if any, by which the ascertained bacon price falls below the standard bacon price.

(2) Where pigs are delivered to and accepted by a curer under such a contract as aforesaid, there shall, subject to the provisions of this section, be paid by the curer to the Minister the sums following, that is to say,—

(a) an amount equal to any subtraction from the price of those pigs falling to be made under the provisions of the last preceding section;

(b) in respect of each hundredweight of bacon produced from those pigs on premises in respect of which a producer's licence, other than a small curer's licence, is in force, a sum equal to the amount, if any, by which the ascertained bacon price exceeds the standard bacon price.

(3) No amount shall be payable in respect of any pig under paragraph (a) of subsection (1), or paragraph (a) of subsection (2), of this section, unless bacon has been produced from the pig on premises in respect of which a producer's licence, other than a

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small curer's licence, is in force; and where the weight of the bacon produced on such premises from a pig is less than the prescribed fraction of the dead weight thereof, any amount payable under either of those paragraphs shall be reduced by applying thereto a fraction the numerator whereof is the number of pounds comprised in the weight of the bacon produced and the denominator whereof is the number of pounds comprised in the prescribed fraction of the dead weight of the pig; and except so far as the contrary is proved to the Minister by the curer in accordance with regulations made under this section, it shall be presumed—

- (a) for all the purposes of subsection (1) of this section, that no bacon has been produced from a pig on such premises;
- (b) for all the purposes of subsection (2) of this section, that a quantity of bacon equal in weight to the prescribed fraction of the dead weight of the pig has been produced therefrom on such premises:

Provided that, except in such cases or classes of cases as may be specified by or under regulations made under this section, if, in accordance with regulations so made, a curer proves to the Minister, in relation to specified premises and specified pigs (being pigs from which bacon could lawfully be produced on those premises) that a specified total weight of bacon was produced on those premises from all or some of those pigs, there shall be deemed for the purposes of this section to have been produced on those premises from each of those pigs a weight of bacon bearing to that total weight the same proportion as the dead weight of that pig bears to the total dead weight of all those pigs.

(4) In this section—

- (a) the expression “the ascertained bacon price” means, in relation to the bacon made from a pig, such sum as the Development Board may satisfy the Minister to be a sum which has in accordance with regulations under this section been determined by the Board (by reference to transactions carried out by such curers as may be specified from time to time by the Minister, after consultation with the Bacon Marketing Board, acting independently of the Development Board) to represent the average market value per hundredweight to curers, during the month beginning with the sixteenth day of the month during which, under the provisions of the contract, the pig is due to be delivered, of whole sides of green Wiltshire-style bacon of all selections produced by the tank-cure process from pigs produced in Great Britain; and
- (b) the expression “the prescribed fraction” means four-fifths or such other fraction as may from time to time be prescribed by regulations under this section; and

(c) the expression "the standard bacon price" means—

(i) in relation to the bacon made from a pig due to be delivered in a month comprised in the first contract period, ninety-four shillings and ninepence per hundredweight increased by one penny per hundredweight for each shilling by which the ascertained lard price for that month falls short of sixty-five shillings per hundredweight, or diminished by one penny per hundredweight for each shilling by which the said ascertained lard price exceeds sixty-five shillings per hundredweight;

(ii) in relation to the bacon made from a pig due to be delivered in a month comprised in the second contract period, ninety-three shillings and ninepence per hundredweight increased by one penny per hundredweight for each shilling by which the ascertained lard price for that month falls short of sixty-three shillings per hundredweight, or diminished by one penny per hundredweight for each shilling by which the said ascertained lard price exceeds sixty-three shillings per hundredweight;

(iii) in relation to the bacon made from a pig due to be delivered in a month comprised in the third contract period, ninety-one shillings and ninepence per hundredweight increased by one penny per hundredweight for every shilling by which the ascertained lard price for that month falls short of fifty-nine shillings per hundredweight, or diminished by one penny per hundredweight for each shilling by which the said ascertained lard price exceeds fifty-nine shillings per hundredweight; and

(d) the expression "the ascertained lard price" means, in relation to any month, the price (calculated to the nearest shilling per hundredweight, any odd sixpence per hundredweight being disregarded) which in the opinion of the Minister fairly represents the average of the prices at which during that month such descriptions of lard as are specified in regulations made under this section were sold by wholesale on such markets in Great Britain as are so specified.

(5) The regulations under this section shall be made by the Minister with the consent of the Treasury, and regulations so made may contain provisions as to the methods by which the sums payable under this section are to be calculated, and in particular may contain provisions—

(a) enabling the Minister to determine in relation to any premises, according to the method of production adopted

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thereon, how much bacon may be presumed by him to have been produced from any pig or part of a pig which is dealt with thereon ;

- (b) directing that in the case of bacon other than Wiltshire style bacon there shall be added to the weight of the bacon an amount designed to correspond to the weight lost by the removal of bones and skin not removed in the case of bacon cured in the said style ;
- (c) specifying the times at which payments are to be made under this section ; and
- (d) specifying the documents and other information which a curer is to produce in connection with any claim by or against him under this section.

(6) All sums payable under this section by a curer to the Minister may be recovered by the Minister as a debt due from the curer to the Crown and, when received by the Minister, shall be paid into the Exchequer.

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